

jurisdiction has been consistently sustained. The historic use of writs of prohibition and mandamus directed by an appellate to an inferior court has been to exert the revisory appellate power over the inferior court. The writs thus afford an expeditious and effective means of confining the inferior court to a lawful exercise of its prescribed jurisdiction, or of compelling it to exercise its authority when it is its duty to do so. Such has been the office of the writs when directed by this Court to district courts, both before the Judiciary Act of 1925, 43 Stat. 936,¹ and since.² In all these cases (cited in notes 1 and 2), the appellate, not the original, jurisdiction of this Court was invoked and exercised.³

¹ E. g., *Ex parte State of New York*, No. 1, 256 U. S. 490; *The Western Maid*, 257 U. S. 419; *Ex parte Simons*, 247 U. S. 231; *Ex parte Peterson*, 253 U. S. 300, 305; *Ex parte Hudgings*, 249 U. S. 378; *Ex parte Uppercū*, 239 U. S. 435; *Matter of Heff*, 197 U. S. 488; *Ex parte Siebold*, 100 U. S. 371; *Ex parte Watkins*, 3 Pet. 193; *United States v. Peters*, 3 Dall. 121.

² *Ex parte United States*, 287 U. S. 241; *Maryland v. Soper* (No. 1), 270 U. S. 9, 27-28; *Maryland v. Soper* (No. 2), 270 U. S. 36; *Maryland v. Soper* (No. 3), 270 U. S. 44; *Colorado v. Symes*, 286 U. S. 510; *McCullough v. Cosgrave*, 309 U. S. 634; *Ex parte Kawato*, 317 U. S. 69; see *Los Angeles Brush Corp. v. James*, 272 U. S. 701.

³ See particularly the discussion in *Maryland v. Soper* (No. 1), 270 U. S. 9, 28-30, and in *Ex parte United States*, 287 U. S. 241. Compare *Ex parte Siebold*, 100 U. S. 371.

Ex parte United States, *supra*, was not and could not have been a case of original jurisdiction. The Constitution confers original jurisdiction only in cases affecting ambassadors, other public ministers and consuls, and "those in which a State shall be Party" (Art. III, § 2, cl. 2). No state was made a party to *Ex parte United States*. The United States has never been held to be a "State" within this provision—and it obviously is not—nor has it any standing to bring an original action in this Court which does not otherwise come within one of the provisions of Article III, § 2, cl. 2. *United States v. Texas*, 143 U. S. 621, relied upon to sustain a different view, was within the original jurisdiction because the State of Texas was the party defendant. And